



SEN REDEEMS
JUSTICE FROM
THE STIFLING
NOBILITY OF
INSTITUTIONS

minimise injustice and maximise justice. He differs with the Enlightenment thinkers who celebrate what he calls 'transcendental institutionalism' which tries only to "identify social characteristics that cannot be transcended in terms of justice, and its focus is thus not on comparing feasible societies, all of which may fall short of the ideas of perfection". Set against this is another Enlightenment approach, "realisation-focused comparison", which concerns with the "the removal of the manifest injustice from the world". Its proponents make a comparative study of existing societies instead of giving themselves to the imagined perfection of a just society. Sen's sympathies are with the latter, though the mainstream theories of justice are hugely

EXCERPT

Much will depend on the vigour of democratic politics in generating tolerant values, and there is no automatic guarantee of success by the mere existence of democratic institutions... The success of democracy is not merely a matter of having the most perfect institutional structure that we can think of. It depends inescapably on our actual behaviour patterns and the working of political and social interactions. There is no chance of resting the matter in the 'safe' hands of purely institutional virtuosity. The working of democratic institutions, like that of all other institutions, depends on the activities of human agents in utilizing opportunities for reasonable realization.

indebted to the transcendentalists.

The duality is also very much in evidence in the Indian tradition of jurisprudence as well, and Sen's unmatched manoeuvrability in shuttling between civilisations makes the argument all the more delightful. Both *niti* and *nyaya*, as Sen says, mean justice in Sanskrit. But there is a difference: *niti* stands for "institutional propriety and behavioural correction", and *nyaya* signifies "realised justice". A theory that overemphasises institutions, Sen argues, makes justice a remote abstraction in a globalised society: "We have to seek institutions that promote justice, rather than treating the institutions as themselves manifestations of justice, which would reflect a kind of institutionally fundamentalist view. Even though the arrangement-centred perspective of *niti* is often interpreted in ways that make the presence of appropriate institutions themselves adequate to satisfy the de-

mands of justice, the broader perspective of *nyaya* would indicate the necessity of examining what social realisations are actually generated through that institutional base." *Nyaya* is more inclusive—and active: "we can never simply hand over the task of justice to some *niti* of social institutions and social rules that we see as exactly right, and then rest there... To ask how things are going and whether they can be improved is a constant and inescapable part of the pursuit of justice."

While espousing a theory of justice that is neither passive nor institutional escapism, Sen is going against his old friend, collaborator, colleague and mentor John Rawls, "the leading political philosopher of our time" to whom this book is dedicated. For Rawls, the author of *A Theory of Justice and Political Liberalism*, justice is fairness, which draws its sustenance from the nobility of institutions, and which continues to be mocked by the reality of the interconnected world we inhabit. Can we honestly say the UN, born out of 'institutional' idealism, has succeeded in ensuring global justice? In an age when, for instance, terror is associated with the madness of the Book as well as the bazaar, what may be more useful is Adam Smith's idea of "impartial spectator": an understanding of people across the borders, an open outlook. What makes Sen's idea of justice indispensable is that, in spite of its philosophical sweep, it is very much related to the here and now. He draws from the wisdom of the East and the West, from the swelling anomalies of the present and the enlightening anecdotes of history, to make the world we have inherited a lot more accessible, livable—and just. His argument redeems justice from the stifling sovereignty of institutions.

The Idea of Justice charts the evolution of a concept and offers a course correction that challenges as well as salutes many theories of justice. More revealingly, it presents us with a vantage position to marvel at the journey of Amartya Sen, public philosopher, dissenting humanist and compassionate economist. The post-Nobel productivity of the jet-setting professor has taken him farther from the arcana of development economics to the vital centre of page-turner philosophy. How many of them can move from the court of Akbar to the palace of Emperor Ferdinand, or from Kautilya to Kant, with such ease and panache? He says "it is bad enough that the world in which we live has so much deprivation of one kind or another (from being hungry to being tyrannised); it would be even more terrible if we were not able to communicate, respond and altercate." More terrible if we are denied the argument of Amartya Sen. ■